

Court No. - 3

Case :- WRIT - C No. - 19898 of 2022

Petitioner :- Sachiv Sharma

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Shivendra Nath Singh

Counsel for Respondent :- CSC, Chetan Chatterjee

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Chandra Kumar Rai, J.

Heard Sri Shivendra Nath Singh, learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Chetan Chatterjee, learned counsel for the respondent No.4.

This writ petition has been filed praying for the following relief:

"I. issue a writ, order or direction in the nature of certiorari to quash impugned recovery citation dated 17-06-2021, issued by the respondent no.4 addressed to respondent no. 2, against the petitioner, which is in the tune of Rs. 2,33,071/-.

II. issue a writ, order or direction in the nature of mandamus, commanding/directing the respondent authorities not to adopt any coercive method for the recovery citation dated 17-06-2021, issued by the respondent no.4 addressed to respondent no. 2 against the petitioner."

Sri Chetan Chatterjee, learned counsel for the respondent No.4/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under **Para 6.8 of U.P. Electricity Supply Code, 2005** before the respondent No.4, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.4 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 20.7.2022

NLY